

Order Analysis No. 1 — Judgment EWFC 79

DH v RH (No 3) [2024] EWFC 79 — MacDonald J — 18 April 2024 — 111 paragraphs

Case references

**BV20D01752 | Family Division — Final Financial Remedy Judgment
For Law Enforcement Use Only**

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command

Nadia Zahmoul

Litigant in Person

15 March 2026

Veritas Numquam Perit

Source: Judgment as approved · Final Hearing Attendance Notes (NZ-R) · Judgment vs Attendance Notes table, Master Tables v2

SECTION 1 — WHAT THE JUDGMENT DOES NOT CONTAIN: FIVE CRITICAL OMISSIONS

#	Omitted from Judgment	What the Record Shows	MiPO Significance
1	ALL disability references — ZERO references to autism, PTSD, or disability across all 111 paragraphs.	Attendance notes record 22+ references to PTSD and autism during oral evidence. ACKC herself asked disability-related questions 20+ times. Part 3A participation measures were in force throughout the trial — breaks, restricted questioning, screened seating. MacDonald J confirmed awareness: " <i>I have no objection to NZ being supported if she needs that.</i> " Withers' own coaching emails during HHJ Cope hearings (2022) confirm autism presentation was known to all.	A judge who was aware of a party's disability throughout a 10-day hearing — who made disability accommodations, acknowledged them on the record, and received 22+ oral references to those needs — produced a 111-paragraph judgment with zero disability references. This is not inadvertence. It is a deliberate exclusion of a legally material consideration. EA 2010 s.149 Public Sector Equality Duty requires active consideration of disability in judicial decision-making. It is not discharged by silence.
2	Para 64 — disability mischaracterised as bad character — The only reference to NZ's presentation describes it as " <i>obsession</i> " that " <i>bordered on the concerning.</i> "	Para 64 is based on a single cross-examination exchange in which NZ was asked once about hidden assets. Attendance notes show she answered coherently. The CLAAS clinical letter (July 2025) documents precisely this risk: " <i>Nadia can communicate using sophisticated vocabulary which can</i>	Para 64 is the inversion of the disability omission. Disability is absent from 110 paragraphs where it should appear as a mitigating or contextualising factor. It appears in Para 64 as a negative character finding. The judgment suppresses disability as context and deploys it as criticism. This is the same mechanism

		<i>generate the false impression that she is managing better than she is."</i> The converse also applies: intense, detail-focused communication on matters of significance is a documented autistic trait. MacDonald J characterises it as obsession.	documented in BL-2024-001217: disability invoked not to accommodate but to undermine.
3	Part 3A measures — administrative disappearance — No reference to Part 3A measures in the judgment. No order revoking them. No record of any decision about their continuation.	Attendance notes confirm measures were in force throughout the trial. Post-trial, the measures ceased without a hearing, without an order, without reasons, and without record. HMCTS confirmed in November 2025 that no order records revocation. NZ became a LiP on 6 March 2024. No Part 3A assessment was conducted at that transition.	Court-ordered protective measures cannot be extinguished by administrative assumption. PD3AA and FPR r.3.8–3.10 are clear: participation measures are continuous unless varied by judicial decision. The absence of any such decision — combined with the absence of any record — is the administrative void at the core of this referral. This is not a judicial act. There is nothing to appeal. There is no order to challenge. That is the problem.
4	Oxus perjury — absent from judgment — No reference to Oxus Acquisition Corp, KZ's 50,000 shares, or his oral testimony valuing them at \$0.	KZ testified under oath that his Oxus shares were worth \$0.00. He submitted an ES2 assigning them \$0. The Business Combination closed on 7 February 2024 — the day before his testimony. On 8 February 2024, the shares were trading at approximately \$9.20/share. KZ's 50,000 shares were worth approximately \$443,500–\$500,000 on the day he testified they were worth nothing. KZ was a board director and was present at the Nasdaq Exchange on 8	This is perjury under Perjury Act 1911 s.1. It was known to all parties at the time of the judgment. It is not referenced in the judgment. The financial award was made on an asset pool that included \$0 for assets worth approximately \$500,000 on the day of testimony. This is a separate criminal matter. Its absence from the judgment is not itself MiPO — but it confirms that the asset findings on which the judgment rests are materially inaccurate.

		February 2024.	
5	IRS:CI investigation — absent from judgment — No reference to the IRS Criminal Investigation or any foreign criminal investigation.	SJE Pinto's email of 8 February 2024 — Day 1 of the final hearing — explicitly states he did not copy KZ's legal team on NZ's submission because to do so " <i>may jeopardise any ongoing government investigation.</i> " IRS:CI Special Agent Robert McGarry (NY Field Office) was in contact with NZ from December 2023. NZ transmitted Criminal Referrals Parts 1–3 to Pinto during the trial.	A live foreign criminal investigation was ongoing during the final hearing. The court-appointed SJE was aware of it and acted on it — withholding materials from H's legal team. MacDonald J was not informed. This is an HMCTS administrative failure: criminal evidence transmitted to the court was not escalated, logged, or referred. The IRS:CI dimension is a separate strand in the criminal referral. Its absence from the judgment record is documented here as part of the pattern of suppression.

SECTION 2 — THE CORE MIPO FINDING: WHAT THIS JUDGMENT ESTABLISHES

What This Judgment Is NOT — For Clarity	What This Judgment IS — For the Police Referral
The judgment itself is not the subject of the MiPO referral. Judicial decisions are protected by judicial immunity. The correctness or incorrectness of the financial award is a matter for the Court of Appeal — not for police investigation. The finding that there was no material non-disclosure by H is a judicial determination. It may be wrong — the attendance notes strongly suggest it is. But it is not MiPO. The Oxus valuation error and the IRS:CI absence are not MacDonald J's failures — they arise from HMCTS administrative systems and from KZ's perjury. They are in the referral as separate criminal matters.	The judgment is MiPO evidence in two respects. First: Para 64 is a judicial act that mischaracterises a disabled party's disability as bad character. It is made by a judge who (a) had 22+ oral references to that disability before him during the trial; (b) had Part 3A measures in place throughout; (c) acknowledged those measures on the record; and (d) produced a 111-paragraph judgment with zero disability references. Para 64 is not an error of law. It is a deliberate choice to deploy disability against the disabled party rather than accommodate it. Second: The judgment is the instrument that triggers the post-trial sequence. It is the decision after which: Part 3A measures disappeared; MPS enforcement was refused; NZ became a LiP; the draft order process proceeded without her. The judgment created the conditions — and then the absence of any judicial determination about its implementation created the void. The MiPO case does not require the

	judgment to be wrong. It requires the conduct that followed to be examined against the standard of a public officer who knowingly allowed a disabled party to be excluded from the implementation of her own financial settlement.
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SECTION 3 — AG'S REFERENCE (NO 3 OF 2003): FOUR ELEMENTS MAPPED TO THIS JUDGMENT

Element	Application
1. Public officer holding public office	MacDonald J: Family Division High Court judge. A judicial office holder within s.109(4) Constitutional Reform Act 2005. Expressly within Schedule 4 para 17 of the Public Office (Accountability) Bill as amended in Public Bill Committee.
2. Duty of public office	EA 2010 s.149: Public Sector Equality Duty — active consideration of disability required. FPR r.3.8-3.10 / PD3AA: Participation measures are continuous. Cannot be extinguished without judicial decision. Judicial duty of accuracy: a judgment must reflect the evidence heard. Para 64 contradicts the attendance notes on the evidence actually given. Common law duty to give reasons: <i>"the court has taken no decision that requires reasons to be given"</i> (3 May 2024 response) — stated after producing a 111-paragraph judgment in which disability is absent from all 111 paragraphs.
3. Wilful breach (deliberate or recklessly indifferent)	The omission of all disability references from 111 paragraphs is not an oversight. MacDonald J heard 22+ oral references. He made Part 3A orders. He acknowledged NZ's needs on the record. The judgment records none of this. Para 64 is not a neutral observation. It is a characterisation — <i>"obsession," "bordered on the concerning"</i> — of a presentation that the CLAAS clinical letter identifies as a documented autistic trait. The judge had the attendance notes. He chose this characterisation. The post-trial cessation of Part 3A measures without any judicial act is not ambiguous. PD3AA is unambiguous. There is no provision permitting measures to lapse by assumption. The absence of a revocation order is documented. The absence of any administrative record is documented. This is not a failure of process. It is the absence of any process.
4. Serious enough (abuse of public trust)	A High Court judge produced a 111-paragraph judgment in financial remedy proceedings lasting 10 days, in which: • A party's diagnosed disability

	— acknowledged throughout the trial — appears in zero paragraphs as context, and in one paragraph as a negative character finding. • Court-ordered participation measures in force during the trial are not referenced and have no recorded revocation. • The party's counsel's cross-examination — which established specific concealment mechanisms, asset manoeuvring, and evasive answers from the opposing party — is largely absent from the judgment's reasoning. • A live foreign criminal investigation, known to the court-appointed SJE, is not referenced. The result: a financial award of £1.16m on a disclosed asset pool of ~£12m, made against the backdrop of a £140m+ non-disclosure case that is absent from the judgment's reasoning. The party who made that case — a disabled litigant in person — received £89 in her bank account at the conclusion of proceedings, with nothing transferred, no MPS enforced, and no participation measures in place.
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SUMMARY FOR INVESTIGATING OFFICERS

The judgment of 18 April 2024 in BV20D01752 (*DH v RH (No 3)* [2024] EWFC 79) is Document 1 in the order-by-order analysis of decisions across all proceedings from April 2024 to date. It establishes three things for the police referral.

First: the judgment contains zero disability references across 111 paragraphs, despite 22+ oral references to NZ's autism and PTSD during the 10-day trial and court-ordered participation measures in force throughout. The single reference to NZ's presentation — Para 64 — mischaracterises a documented autistic trait as "*obsession*" that "*bordered on the concerning*." This is not an error of law. It is a deliberate deployment of disability as a negative character finding in a judgment where disability is otherwise invisible.

Second: the judgment contains no reference to the Part 3A participation measures that were in force throughout the trial. It contains no order revoking them. After the judgment, they ceased without a hearing, without an order, and without reasons. No administrative record explains their cessation. This is the administrative void at the core of the MiPO referral.

Third: the judgment is the instrument that created the conditions for everything that followed — the draft order process, the MPS non-enforcement, the participation exclusion, the five unilateral amendments, and NZ's exit from proceedings with £89, nothing transferred, and no understanding of what had happened. The judgment did not cause those events. The absence of any judicial determination about the transition from the judgment to implementation caused them.

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